three boilers in Buiding X-600 in accordance with the following schedule:

A. Commence Title I and Title II design work—has been commenced prior to the issuance of this ORDER.

B. Issue invitation for bids on electrostatic precipitators (ESPs); furnish copy of bid package to U.S. EPA—has been completed prior to the issuance of this ORDER.

C. Award contract for ESPs—has been completed prior to the issuance of this ORDER.

D. Complete overall design work (Title II) on facility—has been completed prior to the issuance of this ORDER.

E. Award construction contract and commence construction—has been completed prior to the issuance of this ORDER.

F. Complete ESP procurement—has been completed prior to the issuance of this ORDER.

G. Complete construction and commence performance testing—February 28, 1979.

H. Complete performance testing—March 31, 1979.

I. Demonstrate compliance with AP-3-11—May 1, 1979.

II. The Department of Energy shall demonstrate final compliance with AP-3-11 at its Portsmouth Area Gaseous Diffusion Plant by May 1, 1979.

III. Pursuant to the authority granted in Sections 113(d)(1)(C) and 114(a)(1) of the Clean Air Act, the Department of Energy shall install a continuous monitoring system for the measurement of opacity on each effluent stack of the three violating boilers, following any control devices, at Building X-600 of the Portsmouth Area Gaseous Diffusion Plant. The continuous monitoring system shall be installed, calibrated, maintained and operated in accordance with the procedures set forth in Appendix B of 40 CFR 60.13 and Appendix B of 40 CFR Part 60, and shall be properly calibrated and operational upon the achievement of final compliance.

The Portsmouth Area Gaseous Diffusion Plant is required to submit a written report every calendar quarter giving the nature and cause of any emissions in violation of Ohio Regulation AP-3-07 and corrective action taken. Negative reports will be submitted. The reports shall include the magnitude and duration of all violating emissions.

In addition, all data resulting from the operation of the continuous monitoring system shall be stored for a period of two years and made available for inspection by the U.S. EPA or its agent upon request. Malfunctions or periods in which the continuous monitoring system is not in operation shall be reported immediately, along with proposed corrective action.

IV. Pursuant to Section 113(d)(7) of the Act, during the period in which this ORDER is in effect, the Department of Energy shall minimize particulate emissions by implementation of the following:

A. Maintain and operate the existing control devices in a manner which insures that their present collection efficiencies will not diminish.

B. Utilize fuel whose ash content to BTU ratio, on a dry basis, does not exceed, on the average, 2.1x10−3 lb/BTU. This figure is based upon the maximum range of weekly average coal samples taken between June and November of 1977.

Adherence to the above provisions has been determined to be reasonable and representative of the best practicable interim system of emission reduction (taking into account the requirement with which the source must ultimately comply in Section I above) for the period during which the ORDER is in effect.

V. The Department of Energy shall submit reports to the U.S. EPA detailing progress made with respect to each requirement of this ORDER. Such reports shall be submitted within ten (10) days of the completion of such requirement. In addition, no later than May 1, 1979, the Department of Energy shall certify to the U.S. EPA that the Plant is in final compliance with AP-3-11.

VI. All submissions and notifications to the U.S. EPA pursuant to this ORDER shall be made to the Chief, Air Compliance Section, U.S. EPA, Region V, 230 South Dearborn Street, Chicago, Illinois 60604.

VII. Nothing in this ORDER shall be construed so as to affect the Department of Energy's responsibility to comply with any other Federal, State or local regulations.

VIII. Nothing in this ORDER shall be construed as a waiver by the Administrator of any rights or remedies under the Clean Air Act, including, but not limited to, Section 303 of the Act, 42 U.S.C. Section 7603.

IX. The Department of Energy is hereby notified that its failure to achieve final compliance by July 1, 1979, will result in a requirement to pay a noncompliance penalty under Section 120. In the event of such failure, the Department of Energy will be formally notified, pursuant to Section 120 (b)(3) and any regulations promulgated thereunder, of its noncompliance.

X. This ORDER is effective upon promulgation in the FEDERAL REGISTER.

Dated: March 5, 1979.

DOUGLAS M. COSTLE,
Administrator or Delegate.

The Department of Energy has reviewed this ORDER and believes it to be a reasonable means by which its three boilers in Building X-600 can achieve final compliance with Ohio Regulation AP-3-11. The Department of Energy stipulates as to the correctness of all facts stated above and consents to the requirements and terms of this ORDER.

Dated: December 15, 1978.

Secretary of Energy
By: CHARLES A. KELLER,
Title: *Acting Manager.*

[FR Doc. 79-7615 Filed 3-12-79; 8:45 am]

[4310-84-M]

Title 43—Public Lands: Interior

CHAPTER II—BUREAU OF LAND MANAGEMENT, DEPARTMENT OF THE INTERIOR

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 5658]

[A-9915]

ARIZONA

Revocation of Executive Order No. 6002

AGENCY: Bureau of Land Management (Interior).

ACTION: Final rule.

SUMMARY: This order revokes an Executive order which withdrew 347.58 acres of land for administrative purposes in connection with powersite reservations affecting the Colorado and Paria Rivers in Arizona. The lands remain withdrawn under the Act of October 27, 1972 (86 Stat. 1311-1313), for the Glen Canyon National Recreation Area and under a Bureau of Reclamation First Form Withdrawal. Some of the lands are included in the Navajo Indian Reservation.

EFFECTIVE DATE: March 13, 1979.

FOR FURTHER INFORMATION CONTACT:

Mario L. Lopez—602-261-4774, Chief, Branch of Lands and Minerals Operations, 2400 Valley Bank Center, Phoenix, Arizona 85073.

By virtue of the authority contained in section 204 of the Federal Land Policy and Management Act of October 21, 1976, 90 Stat. 2751; 43 U.S.C. 1714, it is ordered as follows:

1. Executive Order No. 6002 of January 18, 1933, as interpreted by Secretarial Interpretation No. 298 of April 25, 1941, as to secs. 18 and 19, T. 40 N., R. 8 E., reserving lands as an administrative site in aid of an existing powersite reservation, and in connection with the maintenance and operation of gauging stations in the Colorado and Paria Rivers, is hereby revoked in its entirety. The lands are described as follows:

GILA AND SALT RIVER MERIDIAN

T. 40 N., R. 7 E.,
  Sec. 13, lots 1, 2, 3, and 4.
T. 40 N., R. 8 E. (partially surveyed),
  Sec. 18, lots 1, 2, 3, and all unsurveyed lands within a quarter of a mile of the Colorado River;
  Sec. 19 (unsurveyed), all lands within a quarter of a mile of the tram towers and cable as shown on the plat of survey approved June 29, 1938.

The area described aggregates approximately 347.58 acres in Coconino County.

2. All of the above described lands lying north of the Colorado River are included in the Glen Canyon National Recreation Area under the jurisdiction of the National Park Service, Department of the Interior, pursuant to the Act of October 27, 1972, 86 Stat. 1311-

1313, and are also withdrawn for reclamation purposes under the Act of June 17, 1902, 32 Stat. 388; 43 U.S.C. 416.

3. All of the above described lands lying south of the Colorado River in sections 18 and 19, T. 40 N., R. 8 E., are included in the Navajo Indian Reservation by Executive Order dated January 8, 1900, and are not open to entry under the public land laws.

4. The following described land is also subject to the provisions of section 24 of the Federal Power Act of June 10, 1920, as amended, 16 U.S.C. 818: T. 40 N., R. 7 E., sec. 13, lots 1, 2, 3, and 4.

Accordingly, none of the lands involved are open to entry or appropriation under the public land laws.

GUY R. MARTIN,
Assistant Secretary of the Interior.

MARCH 5, 1979.

[FR Doc. 79-7465 Filed 3-12-79; 8:45 am]

[6730-01-M]

Title 46—Shipping

CHAPTER IV—FEDERAL MARITIME COMMISSION

SUBCHAPTER A—GENERAL PROVISIONS

[Docket No. 78-50; General Order 16, Amdt. 29]

PART 502—RULES OF PRACTICE AND PROCEDURE

Petitions for Declaratory Order

AGENCY: Federal Maritime Commission.

ACTION: Final rule.

SUMMARY: The Commission's rule governing issuance of declaratory orders is revised to define the limits of applicability of the rule and to adopt procedures governing notice, participation of persons not named in the petition, referral to a formal docket, availability of discovery and evidentiary hearing, and timing and limits of submissions in declaratory order proceedings. These changes are necessary because of problems encountered in the above specified areas due to lack of guidance in the current rule. The amendments will serve to provide uniform guidelines and eliminate current confusion in processing of petitions for declaratory orders.

DATES: Effective March 13, 1979.

ADDRESSES: For further information contact:

Francis C. Hurney, Secretary, Federal Maritime Commission, Room 11101, 1100 L Street, NW., Washington, D.C. 20573, (202) 523-5725.

SUPPLEMENTARY INFORMATION: The Commission by notice published December 5, 1978 (43 F.R. 56921) proposed to amend Rule 68 of the Commission's Rules of Practice (46 CFR 502.68) which provides for issuance of declaratory orders. The proposal indicated that experience has shown that the current rule is deficient due to its failure to outline procedures governing processing of petitions for declaratory orders and its failure to define limits of matters for which it is appropriate to invoke the declaratory order procedures. Specific areas of confusion under the current rule include whether to notice the filing of the petition, whether and to what extent participation by persons not named in the petition (including Hearing Counsel) will be permitted, when referral to a formal docket is appropriate, to what extent discovery and evidentiary procedures should be available, and whether the parties' submissions on the merits must accompany the petition and reply.

The proposed rule was designed to remedy these deficiencies. No comments were directed to the substance of the proposed rule. Accordingly, we have decided to adopt the rule as proposed with minor language changes.

The legislative history of the Administrative Procedure Act indicates that Congress recognized that a necessary condition of the ready use of a declaratory order is that it be employed only in situations where the critical facts can be explicitly stated, without the possibility that subsequent events will alter them.[1] In its order denying a petition for declaratory order in Docket 76-60, served August 9, 1978, the Commission also recognized that declaratory orders are not suited to dispose of contested factual issues. Accordingly, it will usually not be necessary to resort to discovery procedures or evidentiary hearing in declaratory order proceedings. For this reason we are adopting a filing schedule limited to petitions and replies with such filings to be accompanied by the party's complete legal and factual presentation as to its desired disposition of the merits of the petition. Relief from this schedule would be available only if the party could clearly substantiate its need for discovery or evidentiary hearing.

Under this amendment all petitions meeting the requirements of the rules will be referred to a formal docket and notice of filing thereof will be published in the FEDERAL REGISTER. The notice will indicate to what extent replies are permitted. In the case of petitions which are not of general public interest, but which involve matters limited to specifically named parties, replies by persons other than those named in the petition will be permitted only upon grant of intervention by the Commission under Rule 72 (46 CFR 502.72). Participation by the Commission's Bureau of Hearing Counsel will be governed by the same standards as other persons.

In an effort to clarify the circumstances under which petitions for declaratory order are not appropriate, our new rule recites the recognized limited purpose of declaratory orders viz. to allow persons to act without peril upon their own view.[2] The rule further distinguishes between declaratory orders and coercive orders and refers to the appropriate sections of the rules under which the latter are to be sought. Finally, the rule makes it clear that declaratory orders are to be limited to matters involving conduct or activity regulated by the Commission under statutes administered by the Commission.

Pursuant to section 4 of the Administrative Procedure Act (5 U.S.C. 553) and section 43 of the Shipping Act, 1916 (46 U.S.C. 841(a)), § 502.68 of Title 46 CFR is revised to read as follows:

§ 502.68 Declaratory orders.

(a) The Commission may, in its sound discretion, issue a declaratory order to terminate a controversy or to remove uncertainty. Petitions for the issuance thereof shall state clearly and concisely the controversy or uncertainty, shall name the persons and cite the statutory authority involved, shall include a complete statement of the facts and grounds prompting the petition, together with full disclosure of petitioner's interest, shall be served upon all parties named therein, and shall conform to the requirements of Subpart H of this part.

(b) Petitions under this section shall be limited to matters involving conduct or activity regulated by the Commission under statutes administered by the Commission. The procedures of this section shall be invoked solely for the purpose of obtaining declaratory rulings which will allow persons to act without peril upon their own view. Controversies involving an allegation of violation by another person of statutes administered by the Commission, for which coercive rulings such as payment of reparation or cease and desist orders are sought, are not proper subjects of petitions under this section. Such matters must be adjudicated either by filing of a complaint under section 22 of the Shipping Act, 1916 and § 502.62, or by filing of a petition for investigation under § 502.69.

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[1] Attorney General's Mannual on the Administrative Procedure Act, U.S. Department of Justice, 1947, p. 60.

[2] Attorney General's Manual cited above, p. 59.